

CONFORMED COPY

**AMENDED AND RESTATED  
AGREEMENT OF LIMITED PARTNERSHIP**

OF

**NORTHGATE HELION SPV LP**

*a Delaware limited partnership*

Dated as of March 3, 2025

*As amended by Amendment No. 1 dated January 12, 2026*

THE LIMITED PARTNERSHIP INTERESTS REPRESENTED BY THIS AGREEMENT HAVE NOT BEEN REGISTERED UNDER THE SECURITIES ACT OF 1933, AS AMENDED, OR THE SECURITIES LAWS OF ANY STATE, AND MAY NOT BE SOLD, ASSIGNED, PLEDGED OR OTHERWISE TRANSFERRED EXCEPT IN COMPLIANCE WITH ARTICLE 8 OF THIS AGREEMENT AND APPLICABLE SECURITIES LAWS.

*This extract reproduces Section 1.1, Article 8, Section 12.4 and Section 14.2. All other provisions are omitted.*

**SYNTHETIC DOCUMENT. Prepared for demonstration purposes only. All names, parties and terms are fictional. Not legal advice.**

## ARTICLE 1 DEFINITIONS AND INTERPRETATION

**1.1 Definitions.** In this Agreement, the following terms have the meanings set out below.

**“Affiliate”** means, in relation to a person, any other person that directly or indirectly Controls, is Controlled by, or is under common Control with that person.

**“Beneficial Owner Limit”** means 95 beneficial owners of the Partnership, measured immediately after giving effect to a proposed Transfer and as determined by the General Partner for the purposes of the Partnership’s reliance on an exemption from registration under the Investment Company Act of 1940.

**“Business Day”** means a day other than a Saturday, a Sunday or a day on which banks in New York City are authorized or required by law to close.

**“Capital Contribution”** means, in relation to a Limited Partner, the amount contributed by it to the Partnership, as recorded in the Register.

**“Control”** means the power to direct the management and policies of a person, whether through ownership of voting securities, by contract or otherwise.

**“General Partner”** means Northgate Helion GP LLC.

**“Interest”** means the entire interest of a Limited Partner in the Partnership, including its Capital Contribution and all rights attaching to it.

**“Permitted Transferee”** means, in relation to a Limited Partner: (a) an Affiliate of that Limited Partner; (b) a trust established solely for the benefit of that Limited Partner or members of that Limited Partner’s immediate family; or (c) on the death of an individual Limited Partner, that Limited Partner’s estate.

**“Portfolio Company”** means Helion Robotics, Inc.

**“Portfolio Company Documents”** means the certificate of incorporation, bylaws and stockholders’ agreement of the Portfolio Company, each as amended from time to time.

**“Register”** means the register of Limited Partners maintained by the General Partner.

**“Transfer”** means any direct or indirect sale, assignment, transfer, pledge, charge or other encumbrance of all or any part of an Interest, and includes any change of Control of a Limited Partner whose principal asset is its Interest.

**“Transfer and Adherence Agreement”** means an agreement in the form approved by the General Partner under which a transferee agrees to be bound by this Agreement.

*[Sections 1.2 to 7.9 omitted from this extract]*

## ARTICLE 8

### TRANSFERS OF INTERESTS

**8.1 Restriction on Transfers.** No Limited Partner may Transfer all or any part of its Interest without the prior written consent of the General Partner, which may be given or withheld in its sole discretion, except for a Transfer permitted under Section 8.2.

**8.2 Permitted Transfers.** A Limited Partner may Transfer all or part of its Interest to a Permitted Transferee without the consent of the General Partner, provided that (a) the Limited Partner gives the General Partner written notice of the proposed Transfer at least five Business Days before the Transfer is to take effect, and (b) the conditions in Section 8.4 are satisfied.

**8.3 Minimum Holdings.** Following any Transfer of part of an Interest, each of the transferor and the transferee must hold an Interest with a Capital Contribution of not less than US\$10,000, unless the transferor is Transferring its entire Interest. For this purpose, the Capital Contribution attributable to the part Transferred is the transferor's Capital Contribution multiplied by the proportion of its Interest being Transferred, and the balance remains attributable to the transferor.

**8.4 Conditions to Every Transfer.** No Transfer shall take effect unless:

- (a) the transferee has executed and delivered a Transfer and Adherence Agreement;
- (b) the transferee has completed the General Partner's investor onboarding procedures, including anti-money laundering and know-your-customer checks and sanctions screening, to the General Partner's satisfaction;
- (c) the transferee has delivered a properly completed IRS Form W-9 or applicable Form W-8;
- (d) the Transfer would not cause the Partnership to exceed the Beneficial Owner Limit;
- (e) the Transfer complies with the Portfolio Company Documents, to the extent they apply to it; and
- (f) the transferee is an "accredited investor" as defined in Rule 501(a) of Regulation D.

In the case of a Transfer by way of pledge, charge or other encumbrance, paragraphs (a), (c), (d) and (f) apply only on enforcement of the relevant security.

**8.5 Effectiveness and Registration.** A Transfer takes effect only when the General Partner records it in the Register. The General Partner shall not record a Transfer until each condition in this Article 8 has been satisfied, and the effective date of a Transfer may not be earlier than the date on which the last such condition is satisfied.

**8.6 Transfers in Breach Void.** Any purported Transfer made otherwise than in accordance with this Article 8 shall be void and shall not be recognized by the Partnership.

**8.7 Costs.** The transferor shall bear all costs and expenses incurred by the Partnership and the General Partner in connection with any Transfer.

**8.8 Consents in Writing.** Any consent of the General Partner under this Article 8 must be given in writing. Except as expressly provided in a side letter entered into in accordance with Section 12.4, no consent of the General Partner shall be deemed to have been given by reason of its failure to respond to a request.

*[Articles 9 to 11 and Sections 12.1 to 12.3 omitted from this extract]*

## **ARTICLE 12**

### **GENERAL PROVISIONS**

**12.4    Side Letters.** The General Partner may enter into a side letter with a Limited Partner that varies the rights or obligations of that Limited Partner under this Agreement. As between the Partnership and that Limited Partner, the side letter shall prevail over this Agreement. Unless the side letter expressly provides otherwise, rights granted under it are personal to that Limited Partner and do not pass to any transferee.

*[Sections 12.5 to 14.1 omitted from this extract]*

**14.2    Notices.** Any notice or request to the General Partner under this Agreement must be delivered by email to [notices@northgate-gp.example](mailto:notices@northgate-gp.example) and is received on the day of transmission if sent before 5:00 p.m. New York time on a Business Day, and otherwise on the next Business Day.

*[Remainder of Article 14 omitted from this extract]*

IN WITNESS WHEREOF, the General Partner has executed this Agreement, for itself and as attorney-in-fact for each Limited Partner pursuant to the power of attorney granted under this Agreement, as of March 3, 2025.

**NORTHGATE HELION GP LLC**

as General Partner

By: /s/ Eleanor Voss

Name: Eleanor Voss

Title: Managing Member

*[Signature page to Amendment No. 1 dated January 12, 2026 omitted from this extract]*

*[Signature Page to Amended and Restated Agreement of Limited Partnership]*